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August 18, 2026

VIA ELECTRONIC MAIL ONLY

Chadwick L. Williams, Esq.
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Counsel for Defendant Randstad US, LLC

Re: **Opening Demand to Settle as to Randstad US, LLC**
Newanforbi v. Randstad US, LLC, et al. — Alameda County Superior Court, Case No. 26CV199902
Unlawful Use of California Sex Offender Registry Information for Employment (Pen. Code, § 290.46, subd. (j)(2)(E)); Wrongful Termination; ICRAA
InfoMart Order No. 15780719 | Termination: July 15, 2026 | **Demand: $250,000.00 (Randstad only)**

Dear Mr. Williams:

You asked for an opening demand to settle my case against Randstad US, LLC. This is that demand. It is made as to Randstad alone. A demand against both defendants would be a different number and is addressed at the end of this letter.

I. WHERE THE CASE STANDS

The Complaint was filed July 20, 2026 and assigned to the Honorable Karin Schwartz, Department 20. Both defendants were personally served through their shared agent for service of process on July 30, 2026, by the Sacramento County Sheriff (Levying Officer File No. 2026026857); the proofs of service were filed and accepted by the Court on August 7, 2026.

Amended notices of the amount of punitive damages sought under Code of Civil Procedure section 425.115 — $500,000.00 as to each defendant — were filed and accepted August 6, 2026. A case management conference is set for December 17, 2026. Randstad's response is now due September 15, 2026 under the extension confirmed by separate letter today.

I mention the posture for one reason: this is no longer a pre-filing negotiation over a claim that might be brought. It is a filed, served, and calendared case, and the July 20, 2026 pre-filing figure of $85,000.00 — made before service, before the punitive-damages notices, and before I obtained the complete InfoMart file — has been overtaken by events and is withdrawn.

II. THE DOCUMENTARY RECORD

Every material fact in this case is documented in Randstad's own records or in the records of the consumer reporting agency Randstad retained. Nothing turns on whose recollection a jury credits.

- **June 30, 2026.** I applied through Indeed for the "Class C Driver — Bobtail" position posted by The RK Logistics Group, Inc. at its Newark, California facility. RK Logistics sent an automated acknowledgment the same evening.
- **July 1, 2026, 8:08 a.m.** Randstad recruiter Dishon Bryant texted me — roughly twelve hours after the application — "regarding the class C driver position you applied for at RK Logistics." On July 2 he referred me to the embedded site manager by name and cell number.
- **July 7, 2026.** Randstad notified me that my "employee status has changed to Rehired." That afternoon, Randstad Inhouse Services Site Manager II Danyea Watkins — a Randstad employee working inside the RK Logistics Fremont facility, using a randstadusa.com address — sent me the MVR authorization form. At 6:22 p.m., Randstad ordered a background report from InfoMart LLC (Order No. 15780719).
- **July 13, 2026.** The InfoMart report came back. Seven county and state criminal searches: "No Record." Federal criminal: "No Record." OFAC, OIG, and GSA exclusion searches: negative. The single adverse item in the entire report is one line — "Subject is a registered Sex Offender in California" — and the report's overall status reads "NEEDS APPROVAL, PER CLIENT CRITERIA." InfoMart sent me the pre-adverse action notice at 1:31 p.m. that day.
- **July 15, 2026.** Randstad terminated me — two business days after the pre-adverse notice, and without the written adverse action notice the Investigative Consumer Reporting Agencies Act requires.

I hold the complete fifteen-page InfoMart report, the pre-adverse notice, the recruiter's text messages, the rehire notification, and the MVR request. Randstad holds the same records, plus the internal communications that decided the placement.

III. WHY THIS IS RANDSTAD'S EXPOSURE

Penal Code section 290.46, subdivision (j)(2)(E), categorically prohibits the use of registry information "for purposes relating to … Employment." The narrow exception in subdivision (j)(1) for use "to protect a person at risk" has no application to a bobtail driving assignment, and no other exception exists. Subdivision (j) makes any such use actionable: it "shall make the user liable for the actual damages, and any amount that may be determined by a jury or a court sitting without a jury, not exceeding three times the amount of actual damage, and not less than two hundred fifty dollars ($250), and attorney's fees, exemplary damages, or a civil penalty" of up to $25,000.

The "NEEDS APPROVAL, PER CLIENT CRITERIA" designation is a documentary admission that the adverse decision was the output of a predetermined screening rule keyed to registry status rather than an individualized assessment. That is the precise conduct the statute forbids.

Counsel for RK Logistics has already written that Randstad, not RK Logistics, was my employer, and that the rejection rested on my motor vehicle record. Whatever the merits of those positions as to RK Logistics, neither one is available to Randstad:

- **Employer status.** Randstad rehired me, opened the payroll relationship, assigned the site manager, ordered the consumer report, received the pre-adverse notice, and delivered the termination. It has no argument that someone else was the employer — its co-defendant has already told me Randstad was.
- **The MVR theory.** The commercial disqualification RK Logistics produced attaches to Class A commercial privileges and was cleared May 19, 2026. The posting was for a non-commercial Class C driver. My Class C license was reissued June 11, 2026 — three weeks after the clearance and five weeks before I applied. The MVR document RK Logistics relies on was not circulated internally until July 20, 2026, five days after the termination and the same day my demand letters went out.
- **The FCRA and ICRAA timing.** The pre-adverse notice issued July 13. Randstad terminated July 15 — two business days later, inside the statutory waiting period, before the "NEEDS APPROVAL" flag was ever resolved into a final determination, and with no written adverse action notice at any point.

Independent claims lie under the Investigative Consumer Reporting Agencies Act (Civ. Code, § 1786 et seq.), under *Tameny v. Atlantic Richfield Co.* (1980) 27 Cal.3d 167 for termination in violation of fundamental public policy, under Evidence Code section 669 for negligence per se, and under Business and Professions Code section 17200. Fee-shifting attaches to the statutory claims. I am in pro per today and am seeking counsel on contingency; a resolution now is a resolution before that fee exposure begins to accrue.

IV. THE DEMAND

Settlement payment: $250,000.00 (Two Hundred Fifty Thousand U.S. Dollars), Randstad US, LLC only.

- Payable by check or electronic transfer; payee details and payment instructions to follow upon acceptance.
- Written confirmation that Randstad has issued binding guidance to its California staffing, recruiting, and background-screening personnel that California Sex Offender Registry information shall not be used, directly or indirectly, as a basis for any employment or placement decision, and that its screening vendors are instructed accordingly.
- Correction of all internal records of the July 15, 2026 separation to reflect that I am eligible for rehire, and a commitment that any future employer or agency inquiry about this assignment will be answered with dates of assignment and eligible-for-rehire status only.
- Confidentiality of the settlement amount only. The fact of settlement and the non-monetary terms may be disclosed. I will not agree to a non-disparagement clause, and I will not sign a release broader than the claims arising from the July 7 through July 15, 2026 placement and termination.
- The release runs to Randstad US, LLC and its officers, employees, and affiliates only. It does not extend to The RK Logistics Group, Inc., and my claims against RK Logistics are expressly preserved.

V. A GLOBAL RESOLUTION

Your e-mail invited a global demand against both defendants. I am willing to discuss one, and if counsel for RK Logistics wishes to participate jointly, I will provide a global number on request. Two conditions apply. First, a global number will be its own number; it will not be produced by dividing this demand between the two defendants. Second, nothing about a global discussion changes RK Logistics' August 31, 2026 deadline to respond, which I have not extended and do not intend to extend absent a separate agreement with its counsel.

VI. RESPONSE

Please respond in writing to bnn.cdl@gmail.com on or before **5:00 p.m. Pacific Time on September 8, 2026** — one week before Randstad's responsive pleading is due — with an acceptance, a good-faith counter-offer, or a request to schedule a call. I am available to discuss this matter by telephone at any time. If it would move things forward, I am also willing to consider an early mediation.

Settlement discussions do not extend any deadline. The September 15, 2026 date for Randstad's response stands as agreed, and RK Logistics' August 31, 2026 date is unaffected by this letter.

VII. PROTECTION AND RESERVATION OF RIGHTS

This letter is offered in compromise of a disputed claim and is inadmissible to prove liability under Evidence Code section 1152 and Federal Rule of Evidence 408. Nothing in it limits my right to introduce the underlying documentary evidence at trial. Nothing in it waives, releases, or limits any claim, right, or remedy, all of which are expressly reserved. This letter is not an offer to settle for any amount less than that stated, nor an admission of fact, law, or comparative fault.

I look forward to hearing from you.

Very truly yours,

Brendan Ngehsi Newanforbi
Plaintiff, In Pro Per

Method of delivery: Electronic mail only.
cc (by e-mail): cwilliams@kcozlaw.com; file (Newanforbi v. Randstad US, LLC, et al., 26CV199902)